

Court No. - 40

Case :- WRIT - C No. - 20600 of 2023

Petitioner :- Arun Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Om Prakash Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Gajendra Kumar,J.

1. Learned counsel for the petitioner submits that the petitioner is a practicing Advocate of this Court. In most arbitrary manner, the electricity department has discontinued the electricity supply of the petitioner even though from time to time certain amount has been deposited by the petitioner and the electricity meter was installed only on 3.2.2021.
2. Confronted with this situation, Sri N.K.Tiwari, learned counsel for the respondent-Electricity Department fairly states that the matter relates to disputed bill and there is exhaustive procedure under Clause 6.5 of the Electricity Supply Code 2005. He submits that some breathing time may be accorded so that relevant instructions may be placed on the factual aspect of the matter.
3. On the joint request of learned counsel for the parties, the case is passed over for the day.
4. Put up this matter on 29.6.2023 as fresh.

Order Date :- 21.6.2023

A.K.Srivastava

Court No. - 40

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Petitioner :- Arun Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Om Prakash Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

The matter was taken up on 21.06.2021 and following order was passed:-

"1. Learned counsel for the petitioner submits that the petitioner is a practicing Advocate of this Court. In most arbitrary manner, the electricity department has discontinued the electricity supply of the petitioner even though from time to time certain amount has been deposited by the petitioner and the electricity meter was installed only on 3.2.2021.

2. Confronted with this situation, Sri N.K.Tiwari, learned counsel for the respondent-Electricity Department fairly states that the matter relates to disputed bill and there is exhaustive procedure under Clause 6.5 of the Electricity Supply Code 2005. He submits that some breathing time may be accorded so that relevant instructions may be placed on the factual aspect of the matter.

3. On the joint request of learned counsel for the parties, the case is passed over for the day.

4. Put up this matter on 29.6.2023 as fresh."

On the instruction, Shri N.K. Tiwari, learned counsel for Electricity Department fairly states that in case petitioner deposits the part payment, the Electricity would be restored forthwith.

Learned counsel for the petitioner submits that the petitioner's daughter is in critical health condition and she is undergoing medical treatment at Sanjay Gandhi Post Graduate Institute of Medical Sciences, as such lenient view may be taken on the matter.

Considering the facts and circumstances, let the petitioner may deposit Rs.15,000/- within three days towards due bill amount. Shri N.K. Tiwari, learned counsel for Electricity Department assures to the Court that electricity connection would be restored at the premises of petitioner today itself.

Put up as fresh on 07.08.2023.

Order Date :- 10.7.2023

A. Pandey

Court No. - 40

Case :- WRIT - C No. - 20600 of 2023

Petitioner :- Arun Kumar Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Om Prakash Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. In response to our order dated 10.07.2023, it is apprised that requisite amount has been deposited and electricity connection has already been restored and as such, cause for filing the writ petition no more survives.

2. Considering the facts and circumstances, we are not inclined to proceed further in the matter.

3. Consequently, the writ petition is ***disposed of***.

Order Date :- 7.8.2023

A. Pandey